

Liyakat Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 5658 of 2022 · Writ-C No. 5658 of 2022 · **Writ disposed; liberty to object under para 6.8; coercive action stayed eight weeks.**

HEADNOTE

A consumer challenging a provisional assessment notice of Rs. 8,83,649 and seeking protection against disconnection was relegated, without any opinion on merits, to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005. The High Court granted four weeks to file the objection, directed decision after hearing within the following four weeks, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Liyakat Ali challenged a notice dated 1 September 2021 issued by the distribution licensee, which imposed a provisional assessment bill of Rs. 8,83,649, and sought a mandamus restraining the respondents from disconnecting the supply or removing the meter from his premises. Counsel for the Power Distribution Corporation stated on instructions that the petitioner might file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment as alternate remedy

HOLDING

Where a consumer challenges a provisional assessment demand and the licensee states that an objection may be filed and decided in a time-bound manner, the writ may be disposed of without examining merits by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within a stipulated period, directing decision after hearing, and staying coercive action for a limited period or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court relegated the consumer to a Para 6.8 objection against the provisional assessment notice and declined to examine the demand on merits. ¶ 4

fresh-objection-under-clause-6.8 Liberty was granted to file a fresh objection under Para 6.8 within four weeks, to be decided after hearing within the next four weeks, with a time-limited stay of coercive action. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT OF RS. 8,83,649

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4